

5.3.4 Discretionary procedural decisions negatively affecting a party

In T 954/98 of 9 December 1999 the board held, with reference to T 843/91 of 17 March 1993 (OJ 1994, 818), that the mere taking of discretionary procedural steps which might disadvantage a particular party was not enough to justify exclusion, not even if the party interpreted those steps as expressing bias against it.

In T 190/03 (OJ 2006, 502; see also T 283/03, T 572/03 of 18 March 2005 and T 985/01 of 18 March 2005) the board held that not admitting amended claims, regardless of whether the board had correctly used its power or discretion to do so, would not give rise to an objectively justified fear of partiality.

5.4. Comments of the board member concerned

Under Art. 3(2) RPBA 2020 (see also Art. 3(2) RPBA 2007, and for the Enlarged Board Art. 4(2) RPEBA) the member concerned is to be invited to present his comments as to whether there is a reason for exclusion or objection (as to the scope of Art. 3(2) RPBA 2003 and Art. 4(2) RPEBA, see T 985/01 of 18 March 2005).

In T 1938/09 of 2 October 2014 the appellant referred to R 19/12 of 25 April 2014 and objected to the chairman of the board, arguing he was a potential deputy for the Vice-President of the EPO Directorate-General 3 (VP3). The chairman had not provided details, as requested by the appellant, on whether he had deputised for VP3. The board acknowledged that there might be cases where a board would not be in a position to decide on the objection without having received the necessary information from the member objected to. However, in the case at hand the board deemed it irrelevant for the question of impartiality whether the chairman had deputised for VP3 and refused the partiality objection. The provision of the requested details would only have been necessary if the board in its composition at that time had considered that these details were relevant for the decision to be taken.

6. Suspected partiality of members of the Enlarged Board of Appeal

6.1. Referral proceedings under Article 112 EPC

6.1.1 Previous participation in cases as members of the boards of appeal

In G 1/05 (OJ 2007, 362) a member of the Enlarged Board of Appeal was objected to because he had been the chairman of a technical board which had given a prior decision related to the question of law referred to the Enlarged Board. The Enlarged Board held that to the extent that the participation in a referral of a board member who had already dealt with the matter as a member of a board of appeal was not excluded by the relevant provisions (Art. 1(2) RPEBA and Art. 2(3) BDS of the Enlarged Board of Appeal), an objection of partiality could not be based on that very fact alone (see also G 2/08 of 15 June 2009 and R 12/09 of 3 December 2009). On the contrary, unless there were specific circumstances casting doubt on the member's ability to approach the parties' submissions with an open mind on a later occasion, there could not be any objectively justified, i.e.

reasonable, suspicion of partiality against a member of the Enlarged Board of Appeal. Moreover, if all members of the Enlarged Board of Appeal having once taken part in a decision expressing a view on a point of law which was then referred to the Enlarged Board were to be excluded from taking part in that referral, it could become impossible to allocate the number of Enlarged Board members needed to conduct the case. The Enlarged Board of Appeal noted that the situation could be viewed differently if there were deficiencies in the view expressed to such an extent that there was reason to believe that they were the result of a preconceived attitude. It would also have been different if a board member had pronounced on a matter to be decided with his or her participation in such outspoken, extreme or unbalanced terms, be it in the course of or outside the proceedings, that his or her ability to consider the arguments put forward by the parties with an open mind and without a preconceived attitude and to bring an objective judgment to bear on the issues before him or her, could be doubted.

6.1.2 Previous involvement in the preparation of legislation

In G. 1/21 of 17 May 2021 the Chairman of the Enlarged Board and members X and Y of the composition determined by the Chairman to decide on the referral G. 1/21 were objected to on the basis of suspected partiality (Art. 24(3) EPC), based on the Chairman's involvement, in his function of President of the BoA, in the preparation and enactment of Art. 15a RPBA 2020, which dealt with the same topic as the referral. A further member of the panel determined by the Chairman to deal with G. 1/21 (Z) asked the Enlarged Board in a composition under Art. 24(4) EPC to decide on his continued participation in the referral G. 1/21 on the basis that he was also involved in the preparation of Art. 15a RPBA 2020.

Evaluating the objections, the Enlarged Board explained that the fact that a judge had expressed an opinion on a legal issue that was to be decided upon in a case was not in itself and not always a ground for suspicion of partiality (see G 3/08 and G 2/08). The argument that the President BoA had no reservation on the compatibility of oral proceedings in the form of videoconference without consent of the parties with Art. 116 EPC (the basis for the referral question) was therefore in itself not sufficient as a basis for suspicion of partiality. The Enlarged Board noted, however, that in the current case the issue was not so much about the expression of an opinion on a legal issue but was that the Chairman of the Enlarged Board had in his capacity as President BoA performed legislative and managerial acts based on the view that oral proceedings by videoconference without consent of all the parties were compatible with Art. 116 EPC. The Enlarged Board concluded that the concern that the Chairman might have a bias towards answering the referred question in the positive in order to avoid the outcome that his own acts were not in compliance with Art. 116 EPC was therefore objectively justified. He was involved in all stages of the preparation of the legislation, which was at least indirectly under review in G. 1/21, his involvement was direct and decisive; he initiated the proposal, presented it for adoption and approval by the competent organs; he steered the practice of the boards of appeal in this direction and communicated this practice to the public. The reasoning of the ECHR in *McGonnell v. the United Kingdom* (8 February 2000 - 28488/95), that a direct involvement in the passage of legislation was likely to be sufficient to cast doubt on partiality, therefore seemed to apply a fortiori to the present case.

The Enlarged Board was not convinced by the arguments against X and Y, both members of the Presidium of the Boards of Appeal. It noted that the proposals for amending the RPBA 2020 had been discussed during a meeting of the Presidium, but that there did not appear to have been a vote on a negative or positive opinion. Their role in an advisory body could not be qualified as a direct involvement in the passage of legislation as was the case for the Chair. In his capacity as member and task coordinator, Z was involved in the drafting of a proposal for Art. 15a RPBA 2020. Unlike the Chairman, Z did not play a formal role in the decision making process leading to the adoption and approval of Art. 15a RPBA 2020. However, the Enlarged Board found that there may exist in the public eye an objectively justified concern that he, like the Chairman, might be biased towards answering the referred question positively, because answering the question negatively would imply that he had been actively involved in the preparation of a proposal that was not compatible with Art. 116 EPC. The Enlarged Board thus decided that the Chairman and Z should be replaced. It rejected the objection under Art. 24(3) EPC against X and Y.

6.1.3 Previous expressions of opinion on the legal issues to be decided

In G 3/08 of 16 October 2009 the Enlarged Board noted that, according to established case law of the boards of appeal, of the Enlarged Board of Appeal and also of national courts of member states, the mere fact that a board member had expressed a view on the legal issue to be decided on a previous occasion, be it in a prior decision or in literature, be it in a prior position in the EPO or as an expert for external political institutions, could not lead to doubts as to impartiality.

6.2. Petition for review proceedings under Article 112a EPC

This chapter concerns partiality objections raised in petition for review proceedings against members of the Enlarged Board themselves. For decisions of the Enlarged Board on the alleged breach of Art. 24 EPC in appeal proceedings, see chapter V.B.4.1. "Article 112a(2)(a) EPC – alleged breach of Article 24 EPC". As to the replacement of board members after a petition for review has been held allowable, see chapter V.B.3.13.2 "Replacement of board members".

6.2.1 Previous participation in cases as members of the boards of appeal

In R 12/09 of 3 December 2009 (see also R 2/14 of 17 February 2015) the petitioner had objected to the Enlarged Board members, alleging that they inevitably had a personal interest owing to their capacity as members of a technical board or the Legal Board of Appeal. The board observed that the legislator had consciously decided to allocate the task of hearing petitions for review to the Enlarged Board as a pre-existing body with appointed members and, when doing so, had been fully aware that those members were for the most part also experienced members of technical boards or the Legal Board of Appeal. The legislator could thus only have intended that those members also be deployed in procedures under Art. 112a EPC. The legislator had demonstrated its intention that these members' dual function should not, by itself, constitute a reason for objecting to or excluding them when it came to performing this task. The objection was thus dismissed as inadmissible.

6.2.2 Article 24(3) EPC objection under Article 112a(2)(a) EPC

In R 17/09 the petitioner raised an objection under Art. 112a(2)(a) and 24(3) EPC on the basis of a suspicion that the board's actions and decisions could be linked to the interests of multinational companies opposed to the petitioner's patent application. The only evidence relied on for any such link was the board's use of the term "man in the street" of the petitioner. The Enlarged Board found that in English this term had no pejorative associations but was commonly used to describe an average citizen. It could see no support for the allegation that members of the board were influenced in their decision by any bias against the petitioner.

In T 49/15 respondent 4 argued that the reasons for an objection referred to in Art. 24(3) EPC, and so the suspected partiality too, were relevant for the purposes of Art. 112a(2)(a) EPC, asserting in support of its position that the Enlarged Board had cited them in R 17/09. The board found that the respondent had overlooked that the Enlarged Board had rejected the petition for review under Art. 112a(2)(a) EPC in that case as clearly unallowable. That, in doing so, it had chosen to look at the merits of the objection under Art. 24(3) EPC did not mean that the reference in Art. 112a(2)(a) EPC to Art. 24(1) EPC could be interpreted as including Art. 24(3) EPC too.

In the decision under review in R 3/16, the petitioner argued that once an objection based on Art. 24(3) EPC had been raised, the member(s) objected to could not take part in the decision, whatsoever, be it on the admissibility or on the merits of the objection. The Enlarged Board noted that Art. 112a(2)(a) EPC foresaw the situation where a member of the board had taken part in the decision despite being excluded pursuant to a decision under Art. 24(4) EPC or in breach of Art. 24(1) EPC. The case in hand was not concerned with those two grounds since the members had not been excluded and no personal interest had been alleged. Therefore, by a mere application of the principles developed by the established case law of the Enlarged Board under Art. 112a EPC, the Enlarged Board held that if the alleged unlawfulness of the composition was not the consequence of a violation of the right to be heard or an omission of a request, this ground (an objection based on Art. 24(3) EPC) appeared to fall outside the scope of a review, since inter alia it was not on the list of grounds under Art. 112a EPC.

6.2.3 Expressions of preliminary opinions

In R 2/12 of 26 September 2012 the objection of suspected partiality was derived exclusively from the communication by which the petitioner was informed of the Enlarged Board's provisional opinion on the petition. The Enlarged Board found it would be incompatible with an objective assessment of a case and with the principle of a fair trial in inter partes proceedings, if a board member could be 'deposed' on the ground that they did not opine in favour of a particular party right from the beginning of the proceedings. See also in this chapter III.J.5.3.1.

6.2.4 Suspected partiality of the Chairman of the Enlarged Board of Appeal who at the same time was Vice-President of Directorate-General 3 (VP3)

Previously, the Boards of Appeal, together with their administrative services, were integrated into the organisational structure of the European Patent Office as a Directorate-General (DG3) directed by a Vice-President (VP3). For the case law relevant to the previous structure of the Boards of Appeal, in particular R 19/12 of 25 April 2014, R 2/14 of 17 February 2015, and R 8/13 of 20 March 2015, see Case Law of the Boards of Appeal, 9th Edition, 2019, III.J.6.2.3.

Following a structural reform in 2016 (see Annual Report of the EPO 2016), the Boards of Appeal are now organised as a separate unit directed by the President of the Boards of Appeal (see Supplementary Publication 1, OJ 2017). The President of the Boards of Appeal also serves as the Chairman of the Enlarged Board of Appeal. For more information on the current structure of the Boards of Appeal, see chapter VII.1.1. "The judiciary of the European Patent Organisation".

7. Legal restrictions for former board members

In accordance with Art. 20a(2) Service Regulations for permanent and other employees of the EPO (January 2022 version), a member of the boards or former member of the boards intending to engage in an occupational activity, whether gainful or not, within two years of leaving the service shall inform the Administrative Council thereof. If that activity is related to the work he carried out during the last three years of his service and could lead to a conflict with the integrity of the EPO's appeal system, the Administrative Council may, having regard to his interests and to those of the EPO's appeal system, either forbid him from undertaking it or give its approval subject to any conditions it thinks fit.

In G 2/94 (OJ 1996, 401) the Enlarged Board of Appeal noted that there was a potential conflict between what might be seen as a right of former board of appeal members to seek subsequent employment on the basis of their special knowledge by making oral submissions during proceedings before the EPO, and the need for proceedings before the EPO to be conducted free from any suspicion of partiality. The public interest in the proper conduct of proceedings before the EPO had to prevail over the personal interest of former board of appeal members wishing to make oral submissions on behalf of parties to such proceedings. The Enlarged Board found that, in the absence of specific legislation, the point in time following the termination of a former member's appointment to the boards of appeal after which he or she may make oral submissions in proceedings before the boards of appeal was a matter within the judicial discretion of the boards of appeal. The Enlarged Board held that three years should normally have elapsed before the former member should be given permission to make oral submissions as an accompanying person. See also chapter III.V.5.3. "Oral submissions by former members of the boards of appeal".

In T 585/06 the board noted that the former member of the boards of appeal was no longer an EPO employee when he attended the oral proceedings. By virtue of the fundamental principle of freedom to exercise a profession, he was in principle not prevented from working as a consultant in the field of patent law. He had not acted as an authorised